

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 14, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 12:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Dr. Mark Rinne, Scott Roybal and Tom Segrave. Absent: Pete Laybourn and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Segrave moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 24, 2023. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HI Heavy Industrial, AG Agricultural and County A-2 to LI Light Industrial for land located west of Burlington Trail and south of and adjacent to HR Ranch Road. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4519)

ORDINANCE –2nd READING – Defining the Terms and Conditions of Employment for sworn officers of the Cheyenne Police Department for the Fiscal Year 2023-2024. Reporting for Finance Committee, Mr. Esquibel moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –2nd READING – Creating Section 2.08.060, City Employees and Immediate Family Members; Conflict of Interest Policy, of Chapter 2.08, City Officers and Employees Generally, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, requiring the promulgation of a Conflict of Interest Policy for employees of the City of Cheyenne as specified and making a conforming amendment to Section 2.52.010, Regulations and Benefits. Mr. Cook moved to approve on second reading, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –2nd READING – Creating a new Section 15.50.070, Neglected Structure, of Chapter 15.50, Historic Design Guideline, of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to approve on second reading, seconded by Mr. Johnson. Dr. Rinne moved to postpone to August 28, 2023, seconded by Mr. Roybal. Motion to postpone failed. Voting “no” – all members of the governing body present with the exception of Mr. Esquibel and Mr. Johnson voting “yes”. Main motion carried. Voting “yes” all members of the governing body present. Public comments were made by: Cathy Tabor-Douglas, Historic Preservation Board and Michael White. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Johnson, Dr. Rinne and Mr. Segrave.

ORDINANCE –1st READING – Submitting to the qualified property owners of real property within the boundaries of the Cheyenne Downtown Development Authority District of Cheyenne, Wyoming, excluding real property used exclusively for residential purposes, at a Special Election on Wednesday, October 18, 2023, the following question: ‘Shall a Special Assessment of twenty (20) mills be levied upon the assessed value of real property within the boundaries of the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, for a period of four (4) years pursuant to the provisions of Wyo. Stat. § 15-9-217(b) for the purposes of (1) Landscaping or maintenance of public areas; (2) Planning or management of development or improvement activities; (3) Promotion of public events; and (4) Activities in support of business recruitment and development?’ – referred to Finance Committee. (Sponsor – Mr. White)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from Frontier Mall PUD - Planned Unit Development (Ordinance No. 3132) to CB - Community Business for land located at Lot 7B, Block 1, Frontier Mall – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Pursuant to Section 2.2.2 Planned Development - Regulating Plan or Development Master Plan and Section 5.6.2 PUD - Planned Unit Development District of the Unified Development Code, amending Ordinance No. 4286 by modifying certain standards of the adopted district, Planned Unit Development (PUD), for Sweetgrass (located southeast of the intersection of College Drive and Avenue C) – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Creating Chapter 8.68, Limiting the use of Plastic Single Use Carryout Bags, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, regulating the use of single use plastic bags as specified – referred to Finance Committee. (Sponsors– Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. Roybal)

RESOLUTION – Expressing the support of the Governing Body to request the State of Wyoming to reconsider the 2022 House Bill 0148, Creating a Special Animal Control District. Mr. Esquibel advised there was no recommendation from Finance Committee. Mr. Esquibel moved to adopt, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Gunnar Malm, Laramie County

Commissioner. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mayor Collins, Mr. Johnson, Dr. Rinne and Mr. Segrave. (#6343)

RESOLUTION – Expressing the support of the Governing Body to request the State of Wyoming to reconsider the decriminalization of cannabis and reform to the Wyoming Controlled Substance Act. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to adopt, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich and Mr. Segrave voting “no”. Public comment was made by Zach Padilla, Teton County and Cathy Deister. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. Segrave. (#6344)

RESOLUTION – Declaring that the City of Cheyenne has agreed that covenants restricting application of Waterwise Landscaping or requiring installation of Water-Intense Landscaping mandate irresponsible use of water resources and requesting the State Legislative Committees and State Legislature review, consider, and adopt modifications to State Statutes to nullify covenants that restrict Waterwise Landscaping or require installation of Water-Intense Landscaping. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to adopt, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich and Mr. Segrave voting “no”. Public comment was made by: Gummar Malm, Laramie County Commissioner, Michael White, Cathy Deister and Seth Lloyd. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Johnson and Mr. Segrave. (#6345)

RESOLUTION – Directing City staff to research and provide a report regarding the property currently utilized as a detention pond at Highland Village Subdivision. Mr. Cook moved to adopt, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated August 1, 2023, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Dr. Rinne moved to delete last 2 “Whereas” clauses, seconded by Dr. Aldrich. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion, as amended, failed. Voting “no” – all members of the governing body present. Public comment was made by: Cathy Deister. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. Segrave.

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2023 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Expressing the support of the Governing Body for the establishment of an Urban Renewal Authority Fiduciary Fund – referred to Finance Committee. (Sponsor – Mr. White)

[CA] Contract between the City of Cheyenne, Laramie County Sheriff’s Office and Laramie County for housing prisoners at the Laramie County Detention Center (General Fund). Motion (per Consent Agenda) carried. (#7800)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and Stantec Consulting Services, Inc for the Safe Routes to School Plan Update (MPO, TAP and Safe Routes to School Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$282,523.62). (#7801)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives and Laramie County for Youth Crisis Shelter Services (Revenue to the City). Motion (per Consent Agenda) carried (in an amount of \$86,000.00). (#7802)

[CA] Professional Services Agreement between the City of Cheyenne and Rythm EFX, LLC, for Cheyenne Depot Plaza Christmas Light Design and Installation Project (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$127,480.60). (#7803)

[CA] Development Agreement between the City of Cheyenne and Tru-Grit Land Development, LLC, to outline the responsibilities for public infrastructure improvements for the Harmony Valley Subdivision (2023-2026 1% Sales Tax Funding and Private Development Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$238,289.41). (#7804)

Memorandum of Understanding between the City of Cheyenne and Cheyenne Rotary Club Foundation regarding donation of Rotary Park to the City of Cheyenne. Mr. Cook moved to approve, seconded by Mr. Roybal. Mr. Cook moved to amend by substitute dated August 7, 2023, seconded by Mr. Segrave. Motion to amend by substitute failed. Voting “no” – all members of the governing body present. Mr. Cook moved to amend by substitute dated August 8, 2023, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. Public comment was made by: Brent Lathrop, President, Rotary Foundation. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Johnson.

[CA] Grant Agreement between the City of Cheyenne and the Federal Transit Administration to fund Transit Operations (FTA Section 5307 Grant) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Wilson & Company, Inc. for consultant services for the Pershing Blvd. and Windmill Rd. Intersection and Signal Design Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Design Workshop, Inc. for the City of Cheyenne Parks and Recreation Master Plan Project (American Rescue Plan Federal Recovery Funds) – referred to Finance Committee.

[CA] Amendment to Contract No. 7521 between the City of Cheyenne and Laramie County for Animal Control Services (Revenue to the City) – referred to Finance Committee.

There were no comments made on the Voucher Report as presented.

Notice of Emergency Procurement. In accordance with the City of Cheyenne Purchasing Policy, an Emergency Procurement has been authorized by Mayor Collins for the Emergency Pioneer Park Sanitary Sewer Repair. The emergency repair has been authorized to Master Mechanical, for a total of \$78,216.10.

Announcement was made of a Public Hearing to be held on August 28, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to receive comments and input for the West Downtown Urban Renewal Plan and Project as required by Wyoming Statute § 15-9-109.

Public comment was made by the following individual under other business: Seth Lloyd.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Esquibel and Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:20 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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